



EFF Statement on California Governor's Executive Order on AI

California Gov. Gavin Newsom's [executive order](#) is an opportunity for a needed, thoughtful conversation about artificial intelligence and its potential harms. Everyday Californians are feeling real anxiety about the risks of artificial intelligence, and as an organization that works to ensure technology empowers people, EFF welcomes this order as a way for the state of California to lead a much-needed dialogue that addresses these concerns.

Nonetheless, the most immediate and current concerns with this technology are not about sci-fi scenarios concerning rogue super-intelligence. They are happening right now through biased [algorithmic decision-making](#) for [employment](#) or [government benefits](#), [AI-powered surveillance systems](#) such as [Flock cameras](#), and [artificially inflated personalized pricing](#). People want state and federal leaders to act, and we urge Gov. Newsom to develop thoughtful policies to address those concerns. Today's EO is a good start.

To that end, EFF supports the focus on expanding the reporting requirements under [SB 53 \(2025\)](#) for loss-of-control incidents, alongside third-party investigations. We urge the administration to consider how to make these third-party investigations available for smaller developers. As the Government Operations Agency prepares its recommendations for the governor, we urge leaders to also realize that the effectiveness of kill switches in advanced AI systems remains an area of active research. As such, they should ensure that – as we've [previously mentioned](#) – any technology regulation targeting cybersecurity practices at AI labs must be [careful, precise, and practical](#). Moreover, we also caution that government-controlled kill switches run the risk of being used as a form of retaliation against protected speech, as

demonstrated by the Trump Administration's [retaliatory actions against Anthropic](#) earlier this year.

Ultimately, true safety requires California to focus on concrete, immediate, and urgent harms of AI technologies by ensuring that algorithmic decision-making in both the government and private sectors respects people's rights and well-being. We urge Gov. Newsom and the state of California to develop thoughtful policy in collaboration with those most at risk of harm to address these and other concerns.

Discover more. Join our email list for EFF news, events, campaigns, and ways to support digital freedom.

POSTAL CODE (OPTIONAL)

EMAIL ADDRESS *

SIGN UP NOW

☐ I would like to join EFF's email list for EFF news, events, campaigns, and ways to support digital freedom.

RELATED UPDATES

Secure Messaging and AI Remain In Conflict Despite the Promise of TEEs

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY ERICA PORTNOY, THORIN KLOSOWSKI
| SEPTEMBER 18, 2026

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY JACOB HOFFMAN-ANDREWS, TORI
NOBLE, MADDIE DALY | SEPTEMBER 17, 2026

EFF to Lawmakers: Ground AI Cybersecurity Rules in Best Practices

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY LENA COHEN | SEPTEMBER 8, 2026

New Records Reveal Problems with Medicare's AI Prior Authorization Experiment

Judge Rules DOD Unlawfully Retaliated Against Anthropic

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY MATTHEW GUARIGLIA | SEPTEMBER 1, 2026

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY TORI NOBLE, CORYNNE MCSHERRY | AUGUST 31, 2026

EFF to Courts: Don't Rewrite Copyright Over AI Hype

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY HUGH D'ANDRADE | AUGUST 11, 2026

Who (or What) Generates Images for EFF?

EFF Joins 18 Civil Rights Organizations Calling on Governor

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY RINDALA ALAJAJI, TORI NOBLE |
AUGUST 3, 2026

Hochul to Reject the Stealth Crawler Prohibition Act

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY TORI NOBLE, HAYLEY TSUKAYAMA |
AUGUST 3, 2026

EFF Joins Call for FTC to Drop Its Disastrous AI Policy Proposal

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY TORI NOBLE | JULY 20, 2026

“Stealth Crawlers” Are Not a Threat to the Open Web. Bills Targeting Them Would Be.

Automated Moderation Is Here to Stay—Accountability Must Keep Pace

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

ELECTRONIC FRONTIER FOUNDATION
eff.org
Creative Commons Attribution License